

**ONLINE SINGLE E-TENDER ENQUIRY FOR
PROCUREMENT OF TRUE NAT (DUO) and
MTB/RIF CHIPS DURING THE YEAR
2019-20**

Tender No: CMSS/PROC/RNTCP/2019-20/013

CENTRAL MEDICAL SERVICES SOCIETY

Ministry of Health & Family Welfare
(Government of India)

Second Floor,

Office at Vishwa Yuvak Kendra, Pt. Uma Shankar Dikshit Road, Teen Murti Marg,
Chankayapuri, New Delhi-110021

Phone: 011-21410905 & 011-21410906

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ONLINE SINGLE E-TENDER ENQUIRY FOR PROCUREMENT OF TRUE NAT (DUO) MACHINES AND MTB/RIF CHIPS TO CMSS DURING THE YEAR 2019- 20

(Manual bids shall not be accepted)

TENDER DOCUMENTS MAY BE DOWNLOADED FROM CPPP WEBSITE:
<https://eprocure.gov.in/eprocure/app> AS PER THE SCHEDULE AS GIVEN IN
CRITICAL DATE SHEET AS UNDER:

CRITICAL DATE SHEET

Published Date and Time	20.06.2019, 04:00 P.M.
Bid Document Download Start Date And Time	20.06.2019, 04:30 P.M.
Last date to submit pre-bid queries through email to be sent	25.06.2019, 05:00 PM
Bid Submission Start Date and Time	03.07.2019, 03:00 PM
Bid Document Download End Date & Time	05.07.2019, 01:00 PM
Bid Submission End Date and Time	10.07.2019, 03:00 PM
Last date of submission of original documents as per clause No. 4.2(b)	10.07.2019, 03:00 PM
Bid Opening Date and Time	11.07.2019, 03:00 PM

Bids shall be submitted online only at CPPP website:
<https://eprocure.gov.in/eprocure/app>

Tenderers/Contractors are advised to follow the instructions provided in the Instructions to the Contractor/Tenderer for the e-submission of the bids online through the Central Public Procurement Portal for e-Procurement at <https://eprocure.gov.in/eprocure/app>

Bid documents may be scanned with 100 dpi with black and white option which helps in reducing size of the scanned document. Not more than one tender shall be submitted

by one contractor or contractors having business relationship.

Address for Communication : Central Medical Services Society,
Second Floor, Office at Vishwa Yuvak Kendra,
Pt. Uma Shankar Dikshit Road,
Teen Murti Marg, Chankayapuri, New Delhi-110021

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CENTRAL MEDICAL SERVICES SOCIETY

ONLINE SINGLE E TENDER ENQUIRY IS INVITED FOR PROCUREMENT OF TRUE NAT MACHINES AND MTB/RIF CHIPS TO CMSS DURING FOR THE YEAR 2019-20

The CMSS, an autonomous Society of Ministry of Health & Family Welfare (Govt. of India), is responsible for procuring quality Drugs, Vaccines & Contraceptives directly from the manufacturers through open tenders system and ensures timely supply of Drugs, Medicines, Vaccines & Contraceptives to all the States/ UT Governments.

CMSS intends to procure TRUE NAT Machines and MTB/RIF Chips from M/s Molbio Diagnostics Pvt. Ltd. for Model DUO through single e tender basis. (Proprietary Article Certificate is attached for reference)

Tender Inviting Authority: DG&CEO, Central Medical Services Society, IInd Floor, Office at Vishwa Yuvak Kendra, Pt. Uma Shankar Dikshit Road, Teen Murti Marg, Chankayapuri, New Delhi-110021 (hereinafter referred as **Tender Inviting Authority** unless the context otherwise requires)

Tender Accepting Authority: Governing Body, Central Medical Services Society (hereinafter referred as **CMSS**, unless the context otherwise requires)

Tender Inviting Authority invites tender through online bid submission at CPPP website: <https://eprocure.gov.in/eprocure/app> for procurement of Cartridges for CB NAAT Machine to Central Medical Services Society.

1. LAST DATE FOR RECEIPT OF TENDER

- (a) Online Tenders in single packet {"Techno-commercial"} will be submitted online at CPPP website: <https://eprocure.gov.in/eprocure/app> as per critical date sheet. The list of items along with their Technical Specification is attached here as Annex-I
- (b) The bid shall be valid for a period of 150 days from the date of opening of Tender and prior to the expiry of the bid validity, the Tender Inviting Authority may request the Tenderers to extend the bid validity for such further period as deemed fit.

- (c) Bidders are hereby cautioned that any attempt of cartel formation will be viewed seriously and may at the discretion of purchaser, lead to cancellation of tender. Purchaser in its discretion may decide to forfeit black list or debar these bidders for suitable period besides taking other punitive measures. Decision of purchaser in this regard shall be final and binding.

2. **ELIGIBILITY CRITERIA**

(a) The tenderer shall be an original equipment/ item Manufacturer or its Authorized Indian Agent.

(b) Tender should not be submitted by the firm/company for the Product(s) for which the firm/ Company has been blacklisted/ banned/ debarred by CMSS/ State Governments/ Central Government/ its Drug procurement agencies or if the Firm/Company is debarred as a whole by these agencies.

3. **GENERAL CONDITIONS.**

- (i) A complete set of Tender document may be downloaded by any interested eligible tenderer from website: <https://eprocure.gov.in/eprocure/app> as per the schedule given in Critical Date Sheet. **No cost for the Tender document shall be charged for the Tender documents downloaded by the Tenderers.**
- (ii) Tenders will be opened online therefore, the presence of tenderers/authorized representatives of the tenderers is not necessary.
- (iii) Any person who has downloaded the Tender document should watch for amendments, if any, on the website: www.cmss.gov.in and <https://eprocure.gov.in/eprocure/app> for which CMSS will not issue any separate communication to them.

4. **TECHNOCOMMERCIAL BID – “SINGLE PACKET”**

4.1 The Tenderer should electronically submit the soft copies of following documents in Techno commercial Bid. (All the documents submitted should bear signature and stamp of the Tenderer)."

- a. Tender Forwarding letter as per **Annexure-II** signed by the Authorized

Official of the tenderer.

- b. Tenderer shall be a manufacturer - Self Declaration of Manufacturer should be given.
- c. The instruments such as **power of attorney, resolution of board** etc., authorizing an officer of the Tenderer should be enclosed with the Tender duly signed by the Authorized signatory of the Company/Firm and such authorized officer of the Tenderer should sign the Tender documents.
- d. The manufacturer must have a BIS/ CE (EU)/ U.S.F.D.A Certification for quality management system and a type test certificate of relevant optical and mechanical tests. Quality and safety standards met by the product must be listed.
- e. Three purchase order copies of any Govt. Hospital/Institutions/PSUs to be furnished where the bidder had supplied the same item in last three financial years.
- f. A **Checklist (Annexure-III)** indicating the documents submitted with the Tender document and their respective page numbers shall be enclosed with the Tender document. The documents should be serially arranged.
- g. All the documents enclosed with the Tender document should also be signed by the authorized official of the Tenderer.
- h. No Deviation Certificate against technical specifications given at Annexure –XI on company letter head.
- i. An undertaking that firm is not being blacklisted or debarred from any Govt. agency to support clause 2(b) above.
- j. Literature/Brochures of the quoted item.
- k. Proprietary Article Certificate from the Manufacturer (Self Declaration).
- l. Price Bid should be uploaded online in the form of BOQ.XXXX.xls. Format of the Schedules of price bid is available in Annexure XIII for reference only. The price quoted shall be in INR only and is the landed price per unit at the specified locations on DDP basis and shall include all taxes and duties including transportation and other incidental expenditure for delivery at CMSS warehouses.

The above mentioned documents are to be submitted in soft copy electronically on the CPPP portal <https://eprocure.gov.in/eprocure/appas> Techno commercial Bid in single packet as per date prescribed in critical date sheet and as per instructions of online bid submission given in **Annexure –X**.

5. GOODS & SERVICES TAX (GST)

- (i) The Tenderer may quote for GST as per applicability in accordance with relevant Government notification.
- (ii) The Tenderer is not permitted to change/alter the specification or unit size given in Annexure I. If the Tenderer changes the specification or unit size, the Tender will be rejected.

6. OPENING OF TENDER

Presence of authorized official of the Tenderer is not necessary at the time of opening of tender as opening is online.

7. OTHER CONDITIONS

- 7.1 The details of the annual required quantity of **items** are shown in **Annexure-I**
- 7.2 Central Medical Services Society (CMSS) will have the right to increase or decrease up to 25% of the quantity of goods and/or services specified in the schedule of requirements without any change in the unit price or other terms and conditions at the time of award of contract.
- 7.3 In exceptional situation where the requirement is of an emergent nature and it is necessary to ensure continued supplies from the existing vendors, the purchaser reserves the right to place repeat order up to 50% of the quantity of the goods and/or services contained in the running tender/contract up to a period of twelve months from the earliest date of acceptance of letter of acceptance (LOA) at the same rate or a rate negotiated (downwardly) with the existing vendors considering the reasonability of rates based on prevailing market conditions and the impact of reduction in duties and taxes etc.
- 7.4 The rates quoted and accepted will be binding on the Tenderer for the full contract period of one year and any increase in the price will not be entertained till the

completion of this contract period.

- 7.5 Any upward/downward revision (only during scheduled delivery period) in statutory taxes, levies will be allowed and benefit will pass on to supplier/purchaser.
- 7.6 Any increase in taxes and other statutory duties/levies after the expiry of the delivery date shall be to the supplier's accounts. However, the benefit of any decrease in these taxes/duties shall be passed on to the purchaser by the supplier.
- 7.7 In exercising of the powers conferred in Section 11 of the Micro, Small and Medium Enterprises Development (MSMED) Act 2006, the Government has notified a new Public Procurement Policy for Micro & Small Enterprises effective from 1st April 2012. The policy mandates that 20% of procurement of annual requirement of goods and services by all Central Ministries / Public Sector Undertakings will be from the Micro and Small Enterprises. Government has also earmarked a sub target of 4% procurement of goods & services out of 20% from MSEs owned by SC/ST entrepreneurs.
- 7.8 In accordance to the above notification the participating Micro and Small Enterprises (MSEs) in a tender, quoting price within the band of L1 + 15% would be allowed to supply a portion of the requirement by bringing down their price to the L 1 price, in a situation where L 1 price is from someone other than an MSE. Such MSEs would be allowed to supply up to 20% of the total tendered value. In case there are more than one such eligible MSE, the 20% supply will be shared equally. Out of 20% of the quantity earmarked for supply from MSEs, 4% quantity is earmarked for procurement from MSEs owned by SC/ST entrepreneurs. However, in the event of failure of such MSEs to participate in the tender process or meet the tender requirements and the L1 price, the 4% quantity earmarked for MSEs owned by SC/ST entrepreneurs will be met from other participating SMEs.
- 7.9 The DIPP has notified a Public Procurement order -2017 (Preference to Make in India) order 2017 vide order no. P-45021/2/2017-B.E.-II dated 15th June 2017. The provision of said order including any subsequent orders issued from time to time will apply in the instant case.
- 7.10 Supplies should be made directly by the tenderer and not through any other Agency/Dealer/ Distributor.

8. ACCEPTANCE OF TENDER

- 8.1 Technically responsive Tenders will be evaluated based only on the "landed price".
- 8.2 The purchaser reserves the right to accept or reject any bid, and to annul the

bidding process and reject all bids, at any time prior to award of contract without assigning any reason whatsoever and without thereby incurring any liability to the affected bidder or bidders on the grounds of purchaser's action.

- 8.3 The acceptance of the Tenders will be communicated to the lowest / matched tenderers in writing, as per format of the Acceptance Letter given in **Annexure-IV**.

9. SECURITY DEPOSIT AND AGREEMENT

9.1 Security Deposit:

On being intimated about the acceptance of the Tender, the lowest/matched tenderer shall pay a Security Deposit at the rate of 5% of the total value of goods to be awarded. If the Security Deposit amount is within Rs 5 lakhs, it is to be deposited in the form of only NEFT/RTGS/Banker's Cheque /Demand Draft in favor of Central Medical Service Society. The Security Deposit in any other form like Cash/ Cheque/ Postal-Order/ Bank Guarantee will not be accepted. If the amount of security deposit exceeds Rs 5 lakhs, it can be deposited in the form of either NEFT/RTGS/Banker's Cheque/Demand Draft or Bank Guarantee. In case of depositing security deposit by Bank Guarantee, the named beneficiary shall be Central Medical Services Society. The Bank Guarantee shall be issued by a bank (Nationalized or Scheduled Bank) India to make it enforceable and acceptable to the purchaser. The Bank Guarantee shall be in the format as per **Annexure- XIV** provided in the Tender document.

- 9.2 The Performance Bank Guarantee shall be valid for 2265 days from the date of commencement.

LOA Submission	-	15 days
Rate Valid	-	365 days
Delivery period	-	60 days
Shelf life(warranty)	-	365 x 5 days
B.G. Extension	-	60 days
		2265 days

- 9.3 The lowest/ matched tenderer shall execute an Agreement on a non-judicial stamp paper of value of Rs.100/- (stamp duty to be paid by the Tenderer) within

15 days from the date of the intimation from CMSS informing that his Tender has been accepted. The Specimen form of Agreement is available in **Annexure-V**.

- a. The Tenderer shall not, at any time, assign, or make over the contract or the benefit thereof or any part thereof to any person or persons what so ever.
- b. All notices or communications relating to and arising out of this Tender and any consequent agreement or any of the terms thereof shall be considered duly served on or given to the Tenderer if delivered to it or left at the premises, places of business or abode as provided by the tenderer.
- c. If the lowest/matched tenderer fails to execute the agreement and/or to deposit the required security deposit within the time specified or withdraws the Tender, after the intimation of the acceptance of the Tender or owing to any other reasons to undertake the contract, the contract will be cancelled and the firm will also be liable for all damages sustained by the CMSS apart from blacklisting and other penal actions.

10. METHODOLOGY FOR PLACING ORDERS

For placing orders the following procedures will be adopted:

- a. The matched Tenderer shall within 15 days of the acceptance of the Tender execute necessary Agreement for the supply of the tendered quantity of such items as specified in the Tender Document after depositing the required amount as Security Deposit and on execution of the agreement such Tenderer shall supply goods on receipt of Purchase Orders. The format of Purchase Order is attached at **Annexure - VI**.
- b. The supplier shall complete the supply of the items required by CMSS at the destination mentioned in the schedule as indicated at Schedule of Requirements at Annexure I.
- c. The items supplied in excess of the ordered quantity shall not be accepted and the supplier shall take back the excess at their cost. CMSS will not be responsible for the loss to the supplier and will not entertain any demand/claim.
- d. The supplier shall supply the items at the specified destination and submit a copy of the Purchase Order, Delivery Challan and other relevant documents at the same destinations.
- e. After supply of items at the specified destinations, the supplier shall submit Invoice (Original) and other relevant documents etc., at the Head Office, CMSS for claiming

payment.

- f. Subject to Para's above, CMSS will process the invoices submitted by the supplier and the payments against supply will be made within 60 days from the date of submission of all relevant documents to the CMSS.

11.SUPPLY CONDITIONS

- 11.1 The Supplier should acknowledge the receipt of the Letter of Acceptance/Purchase Order within 3 days of its receipt.
- 11.2 The supplier shall supply the ordered quantity as per delivery schedule indicated at Annexure I. If the above day happened to be a holiday for CMSS, the supply should be completed by 5.00 PM on the next working day. In case of non-execution of the order either partially or fully, CMSS reserves the right to cancel the purchase order or place fresh purchase orders on alternative source at the risk and cost of the default supplier. In such cases the CMSS, has every right to recover the cost and impose penalty including blacklisting of the supplier and the product.
- 11.3 With the prior approval of CMSS, the supplier may continue the supply of the unexecuted quantity after last day of delivery schedule with Liquidated Damages as specified in Clause 15.1 of the Tender conditions on the delayed supplies.
- 11.4 All goods must be of recent manufacture and must bear the dates of manufacture and expiry. The supplier should also note that items delivered against the agreement with the Central Medical Services Society shall not have passed more than 1/6 of their shelf life from the date of manufacturing or in case of drugs/items having total life of three years the drugs shall not be older than six months at the time of offering the drugs for inspection. Loss of premature deterioration due to biological and other activities during lifespan of drugs shall have to be made good by the contractor free of cost. The supplier will provide manufacturer's stability test data substantiating the claimed shelf life in the offered package.
- 11.5 The Tenderer shall take back goods, which are not utilized by the CMSS within the shelf life period, based on mutual agreement.
- 11.6 If at any time the Tenderer has, in the opinion of the CMSS, delayed the supply of items due to one or more reasons related to Force Majeure events such as riots, mutinies, wars, fire, storm, tempest or other exceptional events at the manufacturing premises, the time for supplying the drugs may be extended by the CMSS at its discretion for such period as may be considered reasonable. However,

such extension shall be considered only if a specific written request is made by the Tenderer within 10days from the date of occurrence of such event. The exceptional events do not include scarcity of raw material, increase in the cost of raw material, electricity failure, labour disputes/strikes, insolvency, and closure of the factory/manufacturing unit on any grounds etc.

- 11.7 The supplier shall not be liable to pay LD/penalty and forfeiture of security deposit for the delay in executing the contract on account of the extension of supply period on the ground of force majeure events.

12.PACKING

- 12.1 The items shall be supplied in the package specified in the Technical Specifications in **Annexure-IA**. Non adherence of packing specifications will be treated as violation of Tender conditions and fine will be imposed as per condition in Clause 9.
- 12.2 Weight, Volume & Dimensions of shipping cartons & intermediate packaging carton may be mentioned.
- 12.3 The packing shall be of a sturdy quality to provide adequate protection of the product for carriage to final destination, including remote locations under adverse climatic and storage conditions and high humidity. Used cartons should never be used.
- 12.4 Products with specific temperature requirements will be packed and stored and delivered in appropriate conditions.
- 12.5 The packaging unit should be strong, able to be stacked to a height of 4 pallets as static storage and 2 pallets during transport, and resistant to puncturing.

13.QUALITY CONTROL& QUALITY ASSURANCE

- 13.1 Quality Control is an essential part of the current procurement and it is the responsibility of the CMSS and the supplier to ensure quality assurance as per specifications/bid document. The products should conform to the standards as specified in Annexure-I of the Tender document.
- 13.2 The bidder/ supplier understand that the tendered item/items is/are critical health goods and the quality parameters of supplied goods are to be ensured during complete specified shelf life as indicated in technical specification/bid document/ official compendium. Bidder/Supplier also appreciate that failure in

quality checks is serious default as it may derail entire programme and can also risk the life of users of supplied health goods.

14. PAYMENT PROVISIONS

14.1 Payment Terms

Payment shall be made subject to recoveries, if any, by way of liquidated damages or any other charges as per terms & conditions of contract in the following manner.

Payment shall be made in Indian Rupees as specified in the contract in the following manner for Equipment:

a) On delivery:

80% payment of the contract price shall be paid on receipt of goods in good condition and upon the submission of the following documents (only after supply of 50% of goods of each tranche):

- i. Two copies of supplier's invoice showing contract number, goods description, quantity, unit price and total amount;
- ii. Consignee Receipt Certificate in original issued by the authorized representative of the consignee;
- iii. Packing list identifying contents of each package;
- iv. Inspection certificate issued by the nominated Inspection agency, if any.
- v. Insurance Certificate
- vi. Certificate of origin.
- vii. A Certificate of Analysis from manufacturer's own Quality Control Lab covering each machine delivered is to be submitted along with shipping documents.

b) On Acceptance:

Balance 20% payment would be made against 'Final Acceptance Certificate' to be issued by the consignees subject to recoveries, if any, either on account of non-rectification of defects/deficiencies not attended by the Supplier or otherwise. Final acceptance certificate will be released by the consignee on completion of installation, commissioning, training, and successful running of equipment (at least 2-3 weeks) and handing over the equipment to the consignee.

14.2 Payment for Additional Warranty:

The TIA will enter into Additional warranty with the supplier at the rates as stipulated in the contract & Tender terms and conditions. The payment of will be made on six monthly basis after satisfactory completion of said period

The supplier shall send its claim for payment in writing, when contractually due, along with relevant documents etc., duly signed with date, to respective consignees.

- While claiming payment, the supplier is also to certify in the bill that the payment being claimed is strictly in terms of the contract and all the obligations on the part of the supplier for claiming that payment has been fulfilled as required under the contract.
- While claiming reimbursement of duties, taxes etc. from the TIA, as and if permitted under the contract, the supplier shall also certify that, in case it gets any refund out

of such taxes and duties from the concerned authorities at a later date, it (the supplier) shall refund to the TIA forthwith.

14.3 The payment towards supply of drugs/items to CMSS will be made either by means of Cheque or through RTGS (Real Time Gross Settlement System)/ Core Banking/ NEFT. The Tenderer shall furnish the relevant details in original **(Annexure-XII)** to make the payment through RTGS/Core Banking/NEFT.

14.4 All bills/ Invoices should be raised in duplicate and the bills should be drawn in the name of Office at Vishwa Yuvak Kendra, Pt. Uma Shankar Dikshit Road, Teen Murti Marg, Chankayapuri, New Delhi-110001 or in the name of any other authority as may be designated.

14.5(i) Variations in prices will be admitted on account of increase or decrease in the Statutory taxes levies, such as customs duty, GST etc., on production of relevant government notification, but during scheduled delivery period only.

(ii) Any increase in taxes and other statutory duties/levies after the expiry of the delivery date shall be to the supplier's accounts. However, the benefit of any decrease in these taxes/duties shall be passed on to the purchaser by the supplier.

14.6 Payment for CHIPS: 100% payment would be made lot wise (Schedule Wise) against 'Final Acceptance Certificate' to be issued by the consignees subject to recoveries.

15. LIQUIDATED DAMAGES AND OTHER PENALTIES

15.1 If the supply reaches the designated places or CMSS Warehouse after the scheduled delivery, a liquidated damages will be levied at **0.5% per week** for delayed supply up to a **maximum of 10%**, irrespective of the fact that whether the CMSS has suffered any damage/loss or not, on account of delay in effecting supply. If the 60th day happens to be a holiday the supply will be accepted on the next working day without any penalty.

15.2 If the supply is received in damaged condition it shall not be accepted. In case of damage in the packing, the supply will be accepted only after levying a penalty.

15.3 Purchaser reserves the right to debar/blacklist the supplier for a suitable period who habitually failed to supply the goods/services in time. The decision of purchaser will be final and binding.

- 15.4 Purchaser reserves the right to debar/ blacklist a bidder for a suitable period in case he fails to honor his bid/contract without sufficient grounds.

16. SAVING CLAUSE

No suit, prosecution or any legal proceedings shall lie against the Tender Inviting Authority or any person for anything that is done in good faith or intended to be done in pursuance of the Tender.

17. PROHIBITION OF INFLUENCING CMSS BY THE TENDERER

- (i) No tenderer shall contact or influence the CMSS or its employees on any matter relating to its bid from the time of bid opening to the time the contract is awarded.
- (ii) Any effort by a tenderer to influence the CMSS in the bid evaluation, bid comparison or contract award decisions may result in rejection of the tenderer's bid.
- (iii) The tenderer shall not make any attempt to establish unsolicited and unauthorized contact with the Tender Accepting Authority, Tender Inviting Authority or Tender Evaluation Committee after opening of the bids and prior to the notification of award and any attempt by any tenderer to bring to bear extraneous pressures on the Tender Accepting Authority, Inviting Authority or Tender Evaluation Committee, shall be sufficient reason to disqualify the tenderer.
- (iv) Notwithstanding anything contained in clause (iii) above the Tender Inviting Authority or the Tender Accepting Authority, may seek bonafide clarifications from tenderers relating to the bids submitted by them during the evaluation of bids.

18. RESOLUTION OF DISPUTES

- (i) The CMSS and the supplier shall make every effort to resolve, amicably by direct informal negotiation any disagreement or dispute arising between them under or in connection with the contract.
- (ii) In case of a dispute or difference arising between the CMSS and a supplier relating to any matter arising out of or connected with this agreement, such dispute or difference shall be settled in accordance with the Arbitration and

Conciliation Act, 1996. The venue of arbitration shall be New Delhi.

19. JURISDICTION

In the event of any dispute arising out of the Tender such dispute would subject to the jurisdiction of the Civil Court within the city of New Delhi only.

20. FORGERY / FRAUD BY BIDDERS/SUPPLIER

- (i) Genuineness of the papers/documents/certificates/declaration submitted with bid is the responsibility of the bidder. If at any stage it is found that the papers/documents/certificates/declaration submitted by the bidder are not in order, are forged, manipulated, fabricated or altered, the bid or purchase order issued to the bidder is liable to be cancelled and further necessary action including debarring/blacklisting against the bidder will be taken. Purchaser may also initiate police/legal action and request concerned statutory authority for cancellation of license issued to supplier for tendered items.
- (ii) If any fraud, misappropriation of funds/stores is detected on part of the bidder at any stage, the bid or work order/ Purchase order issued to the bidder is liable to be cancelled and further necessary action against the bidder including debarring/blacklisting will be taken.
- (iii) In any of above two cases, the CMSS is at liberty to make alternative purchase of the tendered items from other approved suppliers or in the open market or from any other Tenderer who might have quoted higher rates, at the risk and the cost of the supplier.

21. PATENT RIGHTS

The supplier shall indemnify the purchaser against all third-party claims of infringement of patent, trademark or industrial design rights arising from use of the goods or any part thereof.

22. TERMINATION FOR DEFAULT

22.1 The purchaser may, without prejudice to any other remedy for breach of contract, by written notice of default, sent to the supplier, terminate this contract in whole or in part.

- i If the supplier fails to deliver any or all of the goods within the time period(s) specified in the contract, or any extension thereof granted by the purchaser.
- ii If the supplier fails to perform any other obligation(s) under the contract, and
- iii If the supplier, in either of the above circumstances, does not remedy his failure within a period of 15 days (or such longer period as the purchaser may authorize in writing) after receipt of the default notice from the purchaser.

22.2 In the event the purchaser terminates the contract in whole or in part, pursuant to above the purchaser may procure; upon such terms and in such manner, as it deems appropriate, tendered goods undelivered and the supplier shall be liable to the purchaser for any excess cost for such similar goods. However, the supplier shall continue performance of the contract to the extent not terminated.

23. TERMINATION FOR INSOLVENCY

The purchaser may, at any time, terminate the contract by giving written notice to the supplier, without compensation to the supplier, if the supplier becomes bankrupt or otherwise insolvent, as declared by the competent court provided that such, termination will not prejudice or affect any right of action or remedy which has accrued or will accrue thereafter to the purchaser.

24. SET OFF

Any sum of money due and payable to the supplier (including security deposit refundable to him) under this contract may be appropriated by the purchaser and set off the same against any claim of the purchaser for payment of a sum of money arising out of this contract or under any other contract made by the supplier with the Purchaser.

25. WARRANTY

25.1 The supplier shall warrant that goods to be supplied shall be new and free from all defects and faults in material, workmanship and manufacturing and shall be of the highest grade and consistent with the established and generally accepted standards for materials of the type ordered and shall perform in full conformity with the specifications. Supplier shall warrant that goods supplied will meet and maintain the technical specification throughout specified shelf life. The supplier shall be responsible for any defects that may develop under proper storage/ use, arising from faulty materials, manufacturing or workmanship or otherwise and shall remedy such defects at his own cost when called upon to do so by the purchaser who shall state in writing in what respect stores is faulty.

25.2 If it becomes necessary for purchaser and ask the Supplier to replace or renew any defective portion/portions of the goods supplied, the provisions of the clause shall apply to the portion/portions of goods supplied so replaced or renewed or until the end of mentioned shelf life, whichever may be later.

25.3 Replacement under warranty clause shall be made by the Supplier within 60 days period, free of all charges at site including freight, insurance and other incidental charges.

25.4 If any defect is not remedied within a reasonable time the purchaser may proceed to procure such defective quantities at the Supplier's risk and cost from other tenderer or open market, but without prejudice to may other rights which the purchaser may have against the contract in respect of such defects.

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Annexure -I

**CENTRAL MEDICAL SERVICES SOCIETY
NEW DELHI- 110021**

List of Items and their Technical Specifications

**TENDER FOR PROCUREMENT OF TRUE NAT MACHINE and MTB/RIF Chips TO CMSS
FOR THE YEAR 2019-20**

Sl. No.	Particulars	Detailed Technical Specifications of the Drug	Unit of Measure (UOM)	Approx Tender Quantity in Units
I	Truelab Real Time Micro PCR/RTPCR System (DUO) (with 1 year warranty)	As per Annexure – IA	No.s	1512
II	Truenat Micro PCR/RTPCR Chips- MTB (with 20% Rif. Chips)	As per Annexure – IB	Chips	59,70,000 (MTB Chip with 11, 94, 000 Rif. Chips)

1. Delivery Schedule for Sch I:

- a) Delivery:-The terms of Delivery shall be **DDP (destination)**.
- b) Delivery Schedule: -
 - (a) 1st Tranche – Within 60 days from the date of **Letter of Acceptance (LOA)**
 - (b) 2nd Tranche - To be delivered from 61th day and within 120 days from LOA date.
 - (c) 3rd Tranche- To be delivered from 121st day and within 180 days from LOA date.

2. Delivery Schedule for Sch II:

- c) Delivery:-The terms of Delivery shall be **DDP (destination)**.
- d) Delivery Schedule: -
 - (a) 1st Tranche – Within 60 days from the date of **Letter of Acceptance (LOA)**
 - (b) 2nd Tranche - To be delivered from 61st day and within 120 days from LOA date.
 - (c) 3rd Tranche- To be delivered from 121st day and within 180 days from LOA date.
 - (d) 4th Tranche- To be delivered from 180th day and within 240 days from LOA date.
 - (e) 5th Tranche- To be delivered from 241st day and within 300 days from LOA date.

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Annexure 1A

Technical Specifications of fully Automated Real time PCR System for detection of *Mycobacterium tuberculosis* (MTB) and Rifampicin (Rif) Resistance

General Specifications:-

1. The system should be a fully automated Real time PCR system capable of detecting MTb. The system should also be capable of detecting Rif resistance if MTb detected.
2. The system should be capable of testing multiple samples simultaneously.
3. Each sample module should function independently enabling complete random-access operation.
4. The system operation should have fast, accurate and simplified molecular testing mechanism involving minimal specialized skills.
5. The system should be low weight portable enough for near patient and field use.
6. The system design should be space-saving requiring minimal power and capable of working in all field conditions across the Indian sub-continent.
7. The system should be able to stabilise the sample temperature rapidly and precisely thereby allowing faster process and more accurate results. It should be able to deliver result rapidly and accurately within one hour.
8. The system should fully integrate and automate the processes required for real time PCR based molecular testing.
9. The system should be able to monitor error conditions of reaction chamber to avoid false results with alarm warning.
10. System should have alarms for any defect / fault result to be given.
11. System should use single-use disposable sealed reaction chamber to avoid contact with instrument/ environment/ carry over contamination.
12. The Turnaround time (TAT) from sample processing to results should not be more than one hour for MTB detection or Rif resistance detection.
13. System should be supplied with a suitable printer for generation of reports. The system should also be capable of linking to other existing models of printers (open system).
14. System should be capable of wireless data transfer even from remote areas with GSM network Pan-India.
15. The system should be capable of live-tracking and linkage to Nikshay.
16. The system should be capable for testing multiple communicable diseases apart from TB like HIV, Malaria, Dengue, H1N1, HbsAg, HCV etc.
17. The system should have mains/battery operated with minimum back up for an 8 hour working day. The system should also be capable to be charged with a solar panel.
18. System should be provided with a CMC of four years beyond warranty period.
19. CMC rates for next five years should be quoted at the time of purchase.
20. List of spare parts with price list should be submitted with the tender.
21. Annual calibration requirements should be a part of CMC at no extra cost.
22. The manufacturer should provide Pan-India sales and support commitment.

General Specifications for Consumables:

1. The minimum shelf life for reagents and consumables at ambient temperatures (15°-35°C) should be 18 months.
2. Reagents provided should be ready to use.
3. All consumables (filter tips etc.) and accessory equipments (DNase & RNase free pipette with tip set etc.) for running the test should be provided with the system.
4. System should be supplied with self-contained single-use disposable reaction chamber.
5. The material used in consumables and its packaging should be compliant with the BMW Guidelines, 2016.
6. The left over shelf life at the time of receipt of items should not be less than 5/6th of the total/assigned shelf-life.

TECHNICAL SPECIFICATIONS**DNA Extraction System****System specifications:-**

1. Should be fully automatic
2. Should have digital screen display

3. Should have Rechargeable Lithium Ion Battery Pack 7.4 V, 11.6 Ah External AC/DC adaptor: Input 1.5A, 100/240V, 50/60 Hz; Output 10V, 4.5A
4. Should be light weight, not exceeding 3 kgs
5. Should be operational in the temperature of 15- 35°C in a relative humidity of 10-90%.

Consumables Specifications:-

Sample preparation kit having:

1. Liquefaction buffer
2. Lysis buffer
3. Disposable transfer pipette (graduated)

Real time PCR Platform:

System specifications:-

1. The platform should have fluorescence based detection system.
2. It should allow minimum 35-40 cycles of PCR.
3. The platform should be capable of Wi-Fi, 3G/4G, Bluetooth interface, with Bluetooth linkage support to a printer.
4. The platform should be capable of auto-calibration.
5. The platform should be capable of storing minimum 10,000 test results; with back-up facility of all tests performed.
6. The system should have a minimum display of 5" with touch screen.
7. The platform should have Voltage and plugs well adapted to Indian specifications with a plug suitable to 5 amp/ 15 amp.
8. Platform should have rechargeable lithium ion battery pack with Rechargeable Lithium. Input to AC/DC adaptor: Single Phase 100-240V; 50/60Hz; 1500 mA Rechargeable Lithium ion Battery Pack; 7.5V; 2.2 Ah External AC/DC
9. The manufacturer must have a BIS/ CE (EU)/ U.S.FDA certification for quality management system and a type-test certificate of relevant optical and mechanical tests.
10. Quality and safety standards met by the product must be listed.
11. The software used should be easily upgradable and user-friendly.
12. The platform should have simple and easy procedure for use by minimally trained technician.
13. The Operating Environment for the system should have Temperature range from 15°-35°C; Relative humidity from 10% to 80%.
14. The system should be lightweight, not exceeding 1.5 kg.

Consumables Specifications:

MTB/Rif Resistance Reaction chamber:

1. Reaction chamber should be disposable, stable at ambient Indian temperatures (15°-35°C).
2. Reaction chamber should include lyophilized PCR reagents in microtube for performing detection of *Mycobacterium tuberculosis*.
3. Reaction chamber should include lyophilized PCR reagents in microtube for performing detection of Rifampicin resistant *Mycobacterium tuberculosis*.
4. Reaction kits should contain all necessary reagents for real time PCR.
5. Reaction chambers should have in- built controls to assess PCR.

Rapid Diagnostic MTB chip specifications-

1. MTBchip should function on Real Time Polymerase Chain Reaction (PCR) test for the detection of *Mycobacterium tuberculosis* (MTB) in human pulmonary (sputum/ non sputum) specimen/ culture.
2. MTBChip should be able to run on the Real Time micro PCR Analyzer Machine with samples extracted using Auto sample prep device.
3. The MTB chip should be stable at temperature (2°-30°C)
4. The remaining shelf life at the time of delivery of items should not be less than 5/6th of the total assigned shelf life.
5. The MTBchip should comprise of a reaction well containing dried down MgCl₂.

6. The dried down PCR reagents should be available in microtube for performing Real Time PCR test for detection of MTB.
7. The target sequence for MTB should be part of the ribonucleoside-diphosphate reductase gene specific to the MTB complex.
8. The MTB chip should have flash memory to retain lot information and standard curve values for automatic quantitative determination.
9. MTB chip should not be available for reuse. The reuse and post expiry use should be detectable by flash memory.
10. The time taken for the diagnostic test result should be lower or equal to one hour.
11. The MTB chip should be amenable for disinfection and disposable as per applicable Biomedical Waste Management Rules. The chip should not be infective after use.
12. The consumables should be provided in sufficient quantity to cover 10% wastage.

The following contents should be provided with the MTB chip :-

A. AUTO Universal Cartridge Based Sample Prep Kit containing

1. Reagent pack containing ready to use buffers for automatic sample extraction
2. Cartridge pack with a fluidic cartridge to move sample and buffers through a proprietary matrix for extracting nucleic acids from the sample.
3. Disposable transfer pipette

B. AUTO MTB Sample pre-treatment pack containing

1. Liquefaction buffer to liquify the sample
2. Lysis buffer to lyse the cells and release nucleic acids
3. Disposable transfer pipette (graduated)

C. Individually sealed pouches, each containing

1. MTB micro PCR chip.
2. Microtube with freeze dried PCR reagents.
3. DNase & RNase free filter pipette tip.
4. Desiccant pouch.

MTB-Rif chip specifications:-

1. MTB-RIF chip should function on Real Time Polymerase Chain Reaction (PCR) process for the detection of Rifampicin resistance in Mycobacterium tuberculosis (MTB) in MTB positive human specimen/ culture.
2. MTB-RIF chip should be able to run on the Real Time micro PCR Analyzer Machine with samples extracted using Auto sample prep device.
3. The MTB-RIF chip should contain target sequence of RRDR region of the rpoB gene (between codon positions 509 and 533), representing mutation hot spots known to be related to Rifampicin resistance.
4. The MTB-RIF chip should be stable at room temperature (2⁰-30⁰C)
5. The remaining shelf life at the time of delivery of items should not be less than 5/6th of the total assigned shelf life.
6. The MTB-RIF chip should comprise of a reaction well containing dried down MgCl₂
7. The MTB-RIF chip should have flash memory to retain information and standard curve values for automatic quantitative determination.
8. MTB-RIF chip should not be available for reuse. The reuse and post expiry use should be detectable by flash memory.
9. The time taken for the diagnostic test result should be lower or equal to one hour.
10. The MTB chip should be amenable for disinfection and disposable as per applicable Biomedical Waste Management Rules. The chip should not be infective after use.
11. The consumables should be provided in sufficient quantity to cover 10% wastage.

The following contents should be provided with the MTB-RIF chip:-

A. AUTO Universal Cartridge Based Sample Prep Kit containing

1. Reagent pack containing ready to use buffers for automatic sample extraction
2. Cartridge pack with a fluidic cartridge to move sample and buffers through a proprietary matrix for

extracting nucleic acids from the sample.

3. Disposable transfer pipette

B. AUTO MTB Sample pre-treatment pack containing

1. Liquefaction buffer to liquify the sample

2. Lysis buffer to lyse the cells and release nucleic acids

3. Disposable transfer pipette (graduated)

C. Individually sealed pouches, each containing

1. MTB micro PCR chip.

2. Microtube with freeze dried PCR reagents.

3. DNase&RNase free filter pipette tip.

4. Desiccant pouch.

Annexure 1B

Consignee List for Truelab Real Time MicroPCR/RTPCR system (DUO)

Consignee State	Truelab Real Time MicroPCR/RTPCR system (DUO)		
	(1st Tranche) in 2 Months from NOA	(2nd Tranche) in 2 months after completion of 1st tranche	(3rd Tranche) in 2 months after completion of 2nd tranche
Andhra Pradesh	0	0	35
Andman Nicobar	0	0	1
Arunachal Pradesh	0	0	1
Assam	0	0	11
Bihar	0	0	37
Chandigarh	0	0	5
Chhatisgarh	0	0	11
Dadra Nagar Haveli	0	0	1
Delhi	0	0	29
Goa	0	0	3
Gujrat	0	0	77
haryana	0	0	45
Himachal Pradesh	0	0	19
Jammu Kashmir	0	0	15
Jharkhand	0	0	22
karnataka	0	85	0
Kerala	0	54	0
Lakshadweep	0	0	0
Madhya Pradesh	0	69	0
Maharashtra	0	79	0
Manipur	0	0	2
Meghalaya	0	0	4
Mizoram	0	0	0
Nagaland	0	0	1
Odisha	0	0	28
Pondicherry	0	0	5
Punjab	0	0	35
Rajasthan	0	57	0
Sikkim	0	0	1
Tamilnadu	127	0	0
Telangana	0	0	18
Tripura	0	0	2
Uttar Pradesh	458	0	0
uttarakhand	0	0	16
West Bengal	0	159	0
Total -	585	503	424

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Consignee List for Truenat MicroPCR/RTPCR Chips (MTB and RIF Chips)										
Consignee State	Truenat MicroPCR/R TPCR Chips - MTB	Truenat MicroPCR/RT PCR Chips - RIF	Truenat MicroPCR/RT PCR Chips - MTB	Truenat MicroPCR/RT PCR Chips - RIF	Truenat MicroPCR/RT PCR Chips - MTB	Truenat MicroPCR/RT PCR Chips - RIF	Truenat MicroPCR/RT PCR Chips - MTB	Truenat MicroPCR/RT PCR Chips - RIF	Truenat MicroPCR/R TPCR Chips - MTB	Truenat MicroPCR/R TPCR Chips - RIF
	(1st Tranche) In 2 Months from the date of Placing order		(2nd Tranche) In 2 months after completion of 1st tranche		(3rd Tranche) In 2 months after completion of 2nd tranche		(4th Tranche) In 2 months after completion of 3rd tranche		(5th Tranche) In 2 months after completion of 4th tranche	
Andhra Pradesh	18000	9600	0	0	83625	16725	0	0	85625	13125
Andaman Nicobar	4,800	960	-	-	6,675	1,335	-	-	1,875	375
Assam	4,800	960	-	-	6,675	1,335	-	-	1,875	375
Bihar	-	-	-	-	20,625	4,125	-	-	20,625	4,125
Chandigarh	-	-	-	-	69,375	13,875	-	-	69,375	13,875
Chhattisgarh	-	-	-	-	9,375	1,875	-	-	9,375	1,875
Dadra Nagar Havel	-	-	-	-	20,025	4,125	-	-	20,025	4,125
Delhi	-	-	-	-	1,875	375	-	-	1,875	375
Dolbi	20,400	4,080	-	-	74,775	14,955	-	-	54,375	10,875
Goa	-	-	-	-	5,625	1,125	-	-	5,625	1,125
Gujarat	-	-	-	-	1,44,375	28,875	-	-	1,44,375	28,875
Haryana	-	-	-	-	84,375	16,875	-	-	84,375	16,875
Himachal Pradesh	-	-	-	-	35,625	7,125	-	-	35,625	7,125
Jammu Kashmir	-	-	-	-	28,125	5,625	-	-	28,125	5,625
Jharkhand	-	-	-	-	41,250	8,250	-	-	41,250	8,250
Karnataka	-	-	1,59,375	31,875	-	-	1,59,375	31,875	-	-
Kerala	-	-	1,01,250	20,250	-	-	1,01,250	20,250	-	-
Lakshadweep	4,800	960	-	-	4,800	960	-	-	-	-
Madhya Pradesh	-	-	1,29,375	25,875	-	-	1,29,375	25,875	-	-
Maharashtra	-	-	1,48,125	29,625	-	-	1,48,125	29,625	-	-
Manipur	4,800	960	-	-	8,550	1,710	-	-	3,750	750
Meghalaya	4,800	960	-	-	12,300	2,460	-	-	7,500	1,500
Mizoram	4,800	960	-	-	4,800	960	-	-	-	-
Nagaland	4,800	960	-	-	6,675	1,335	-	-	1,875	375
Odisha	-	-	-	-	52,500	10,500	-	-	52,500	10,500
Pondicherry	-	-	-	-	9,375	1,875	-	-	9,375	1,875
Punjab	-	-	-	-	65,625	13,125	-	-	65,625	13,125
Rajasthan	-	-	1,06,875	21,375	-	-	1,06,875	21,375	-	-
Sikkim	4,800	960	-	-	6,675	1,335	-	-	1,875	375
Tamilnadu	2,62,125	52,425	-	-	2,62,125	52,425	-	-	-	-
Telangana	16,800	3,360	-	-	50,550	10,110	-	-	33,750	6,750
Tripura	4,800	960	-	-	8,550	1,710	-	-	3,750	750
Uttar Pradesh	8,06,350	1,61,270	-	-	8,06,350	1,61,270	-	-	-	-
Uttarakhand	-	-	-	-	30,000	6,000	-	-	30,000	6,000
West Bengal	-	-	2,98,125	59,625	-	-	2,98,125	59,625	-	-
Total -	12,48,875	2,49,375	9,43,125	1,88,625	20,41,875	4,08,375	9,43,125	1,88,625	7,95,000	1,59,000

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Annexure -II**TENDER FORWARDING LETTER**
(To be given on Company Letter Head)

Date:

To,
DG&CEO,
Central Medical Services Society
Second Floor, Office at Vishwa Yuvak Kendra,
Pt. Uma Shankar Dikshit Road, Teen Murti Marg, Chankayapuri, New Delhi-110021

Sub: Acceptance of Terms& Conditions of Tender.

Tender No: CMSS/PROC/RNTCP/2019-20/013

Name of Tender: Online Single e-tender for Procurement of TrueNat Machine and MTB/Rif Chips

Dear Sir,

1. I/We have downloaded/obtained the tender document(s) for the above mentioned 'Tender/Work' from the web site(s) namely:

as per your advertisement, given in the above mentioned website(s).

2. I/We hereby certify that I/we have read the entire terms and conditions of the tender Documents from Page No. _____ to _____ (Including all documents like annexure(s), schedules(s), etc.), which form part of the contract agreement and I/we shall abide hereby by the terms / conditions / clauses contained therein.
3. The corrigendum(s) issued from time to time by your department/organization too has also been taken into consideration, while submitting this acceptance letter.
4. I / We hereby unconditionally accept the tender conditions of above mentioned tender document(s)/ corrigendum(s) in its totality/entirety.
5. I/We do hereby declare that our Firm has not been blacklisted/debarred by any Govt. Department/Public sector undertaking.
6. I/We hereby declare that bid will remain valid for a period of 150 days after opening of Tender bid/packet
7. I/We certify that all information furnished by our Firm is true & correct and in the event that the information is found to be incorrect/untrue or found violated, then your department/organization shall without giving any notice or reason therefore or summarily reject the bid or terminate the contract, without prejudice to any other rights or remedy including the forfeiture of the full said earnest money deposit absolutely.

Yours Faithfully,
(Signature of the Tenderer ,with Official Seal)

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Annexure -III**CHECK LIST****Packet 1**

1	Checklist – Annex-VII	☐	☐ Y ☐	☐ N ☐
2	Tender Forwarding Letter as per Annexure -II.	☐	☐ Y ☐	☐ N ☐
3	Manufacturing Authorization Form Annexure -M.	☐	☐ Y ☐	☐ N ☐
4	Authorization letter nominating a responsible person of the tenderer to transact the business with the Tender inviting Authority.	☐	☐ Y ☐	☐ N ☐
5	BIS/ CE (EU)/ USFDA Certification for Quality Management System	☐	☐ Y ☐	☐ N ☐
6	Three Purchase Order Copies	☐	☐ Y ☐	☐ N ☐
7	No Deviation Certificate. Annexure -I	☐	☐ Y ☐	☐ N ☐
8	Undertaking that Firm is not being blacklisted or debarred from any Govt. agency	☐	☐ Y ☐	☐ N ☐
9	Literature / Brochure of the quoted item	☐	☐ Y ☐	☐ N ☐

1	Proprietary Article Certificate from the Manufacturer.	☐	<table border="1"><tr><td>Y</td><td>☐</td></tr></table>	Y	☐	<table border="1"><tr><td>N</td><td>☐</td></tr></table>	N	☐
Y	☐							
N	☐							
2	Mandate Form for RTGS Annex-XII	☐	<table border="1"><tr><td>Y</td><td>☐</td></tr></table>	Y	☐	<table border="1"><tr><td>N</td><td>☐</td></tr></table>	N	☐
Y	☐							
N	☐							
3	The Tender document signed by the Tenderer in all pages with office seal.	☐	<table border="1"><tr><td>Y</td><td>☐</td></tr></table>	Y	☐	<table border="1"><tr><td>N</td><td>☐</td></tr></table>	N	☐
Y	☐							
N	☐							

Annexure-IV**Central Medical Services Society**

Second Floor, Office at Vishwa Yuvak Kendra, Pt. Uma Shankar Dikshit Road,

Teen Murti Marg, Chankayapuri, New Delhi-110021

, Tel: 011-23736186, Fax: 011-23730120

Email: cmss.procurement@gmail.com**LETTER OF ACCEPTANCE**

No: CMSS/PROC/RNTCP/2018-19/013

Date _____

To,

M/s _____

Address: _____

(Kind Attn: _____(Name), _____ Designation)

Sub: Acceptance of Tender for supply of Tuenat Machine and MTB/RIF Chips

Ref: 1) CMSS Tender No. CMSS/RNTCP/2019-20/013 opened on _____

2) Your Ref. No. _____ dated _____ in response to above mentioned tender.

Dear Sir,

I am pleased to inform you that your offer in response to above mentioned Tender for supply of True Nat Machine and MTB/RIF Chips has been accepted for following items:

Sch. No.	Items Descriptions	Quantity	Unit	Ex-Works per Unit (Rs.)	GST (%)	GST (Rs)	Transport & any other charges (Rs.)	Total unit price (all in.) (Rs.)	Grand Total (Rs)
I									
II									
							Grand Total		

- You are requested to deposit Security Deposit @ 5% of the total value by NEFT/ RTGS/ Fixed Deposit Receipt/ Demand Draft (payable at New Delhi)/ Bank Guarantee and enter into an Agreement, as per the format given in **Annex-X** of the Tender document, within 7 days from the date of receipt of this letter.
- Detailed Agreement including consignee list shall be forwarded after receipt of Security Deposit.
- Delivery Period:
 - 1st Tranche: within 60 days from the date of issue of LOA.
 - 2nd Tranche: To be delivered between 120 days from LOA date.
 - 3rd Tranche: To be delivered between 180 days from LOA date.
- All other terms and conditions will be as per Tender document no. CMSS/PROC/RNTCP/2018-19/032 and subsequent amendments to it.

Yours faithfully,

(S.A. Khan)
GM(Procurement)

Encl: - Annexure A: List of manufacturing license and site address.

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Annexure – V

LONG TERM AGREEMENT (LTA) NO.:CMSS/PROC/RNTCP/2019-20/013/LTA/

E- STAMP CERTIFICATE NO.:

LTA Validity: From _____ to _____

TERMS OF AGREEMENT

THIS AGREEMENT made the..... day of, year between Central Medical Services Society, Second Floor, Office at VishwaYuvak Kendra Pt. Uma Shankar Dikshit Road, Teen Murti Marg, Chankayapuri, New Delhi-110021 (here in after "the Purchaser") of the one part and (Name of Supplier) of..... (Address and Country of Supplier) (Here in after called "the Supplier") of the other part:

WHEREAS the Purchaser is desirous that certain Goods and ancillary services viz;. Supply of items in the Tender Reference No.CMSS/PROC/RNTCP/2019-20/013, Dt_____(Brief Description of Goods and Services) and has accepted a bid by the Supplier for the supply of those goods and services for the sum of..... (Contract Price in Words and Figures) (Hereinafter called "the Contract Price").

WHEREAS the Supplier confirms that it is qualified, ready, willing and able to supply the Drugs/items in accordance with the terms and conditions of this Agreement.

1. DEFINITIONS

Commencement Date means _____

Expiry Date means _____

Products, in singular form Product, means the item(s), as described and detailed above, provided by the Supplier to CMSS from time to time pursuant to this agreement.

Tender means Tender No. Tender No: CMSS/PROC/RNTCP/2019-20/013 from CMSS to the Supplier, to quote for the cost of supply of the Products to CMSS.

Long Term Agreement, as abbreviated to Agreement or LTA, means this Agreement between the Parties, to provide Products, including its Annexes, however with due consideration of the order of precedence among the LTA and individual Annexes.

Parties means CMSS and the Supplier, their successors and assigns and where not repugnant to the context, their servants or agents.

Purchase Order or **Purchase Orders** means the order(s) raised by CMSS to purchase Products in specific quantities from the supplier from time to time.

Warranty Period means the period of duration of the warranty or warranties in respect of the Products as provided in Art. 17.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of this Agreement referred to, and they shall be deemed to form and be read and construed as part of this Agreement.

2. LTA DOCUMENTS:

The following documents shall be deemed to form and be read and construed as part of this Agreement, viz.:

- (a) This LTA
- (b) The Notice Inviting Tender
- (c) Terms and Conditions of Tender Document as given in Tender No.: **CMSS/PROC/RNTCP/2019-20/013** DT. _____
- (d) The Minutes of Pre-Bid meeting and corrigendum issued.
- (e) Schedule of Requirement.
- (f) The Technical Specification
- (g) The Supplier's Offer including Enclosures, Annex etc.
- (h) Any other document listed in the supplier's bid and replies to queries, clarifications issued by the purchaser, such confirmations given by the bidder which are acceptable to the purchaser and the entire Addendum issued as forming part of the contract.
- (i) The Letter of Acceptance issued by the purchaser.

3. PURPOSE OF LTA:

- a. The Purchaser hereby covenants to pay the Supplier in consideration of the provision of the goods, the Contract Price at the times and in the manner prescribed by this Agreement.
- b. Brief particulars of the Products or goods which shall be supplied / provided by the Supplier are as under.

Sch. No.	Items Descriptions	Quantity	Unit	Ex-Works	GST (%)	GST (Rs)	Transport & any	Total unit	Grand Total
----------	--------------------	----------	------	----------	---------	----------	-----------------	------------	-------------

				per Unit (Rs.)			other charges (Rs.)	price (all in.) (Rs.)	(Rs)
I									
II									
							Grand Total		

- c. The supplier agrees that his supplies are subject to terms and conditions details contained in LTA documents mentioned above. The supplier appreciates that the supplies are meant for public health system in the country and hence will agree to supply the goods of good quality as per standards in a timely manner as specified as per tender terms and conditions. The supplier has already given its no deviation (clause-by-clause compliance) for the subject terms and conditions.

4. Manufacturing License and Site

License and Site Address:

As per Annexure A.

IN WITNESS where of the parties here to have caused this Agreement to be executed in accordance with their respective laws the day and year first above written.

Signed, Sealed and Delivered by the said..... (For the Purchaser)
in the presence of

Signature
Name
Address

Signed, Sealed and Delivered by the Said (For the Supplier)
in the presence of

Signature
Name

Address

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Annexure - VI**CENTRAL MEDICAL SERVICES SOCIETY**

Ministry of Health & Family Welfare

(Government of India)

Second Floor, Office at VishwaYuvak Kendra,

Pt. Uma Shankar Dikshit Road,

Teen MurtiMarg, Chankayapuri, New Delhi-110021

PURCHASE ORDER**PO No: CMSS/PROC/ RNTCP/ PO/001****Dated: _____**

To,

M/s _____

Address: _____

Attn: _____

Phone: _____

Email _____

Subject: Purchase Order for supply of True Nat Machines and MTB/RIF Chips**Ref : Long Term Agreement No: CMSS/PROC/RNTCP/2019-20/013 dt_____**

Dear Sir,

Please supply following quantities for the items specified as per the technical specifications and terms & conditions of the Long Term Agreement referred above:

Sch. No.	Items Descriptions	Quantity	Unit	Ex-Works per Unit (Rs.)	GST (%)	GST (Rs)	Transport & any other charges (Rs.)	Total unit price (all in.) (Rs.)	Grand Total (Rs)
I									
II									
Grand Total									

- All the Terms & Conditions of the Agreement signed by you on acceptance of your tender are applicable.
- Delivery Period:
 - 1st Tranche: within 60 days from the date of issue of LOA.
 - 2nd Tranche: to be delivered between 120 days from LOA date.

- c) 3rd Tranche: to be delivered between 180 days from LOA date.
3. Manufacturing license as per Annexure A and site address as per Annexure B of this PO.
 4. Payment Terms: Within 75 days of supplies in respect of items requiring sterility tests and within 60 days of supplies for other items.

(S.A. Khan)
GM (Procurement)

Copy to :

1. General Manager (LSC), CMSS
2. General Manager (QA), CMSS
3. Asst. General Manager (Finance), CMSS
4. All Consignees (CMSS Warehouses) concerned.

Annexure A to PO No:

Supplier: M/s

Annexure - A

CONSIGNEE LIST

Sr. No.	Item Description	Consignee Location	Consignee Address	Quantity	UOM	Remarks

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Annexure -VII**MANDATE FORM**

01	Company Name	
02	Postal Address of the company with Telephone No., Fax No. and Mail ID.	
03	Name of the Managing Director / Director / Manager Mobile No. / Phone No. E-mail ID.	
04	Name and Designation of the authorized company official Mobile No. E-mail ID	

Date:

Company Seal

Signature

Place:

(Name of the person signing & designation)

Mandate Form contd..

01	Name of the Bank. Branch Name& address. Branch Code No. Branch Manager Mobile No. Branch Telephone no. Branch E-mail ID	
02	9 digit MICR code number of the bank and branch appearing on the MICR cheque issued by the bank.	
03	IFSC code of the Branch	
04	Type of Account (Current / Savings)	
05	Account Number (as appear in Cheque book)	

(in lieu of the bank certificate to be obtained , please **attach the original cancelled cheque** issued by your bank for verification of the above particulars).

I /We hereby declare that the particulars given above are correct and complete. If the transaction is delayed or not effected at all for reasons of incomplete or incorrect information, I would not hold M/s. Central Medical Services Society (CMSS) responsible. I have read the conditions of the tender/agreement entered and agree to discharge the responsibility expected of me / from the company as a tenderer

/successful tenderer.

Date:

Company Seal

Signature

Place:

(Name of the person
signing& designation)

CERTIFIED THAT THE PARTICULARS FURNISHED ABOVE BY THE COMPANY ARE
CORRECT AS PER OUR RECORDS.

Bank Seal with address.
authorized

Signature of the
official of the bank.

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Annexure-VIII**PRICE -BID****CENTRAL MEDICAL SERVICES SOCIETY
NEW DELHI – 110021****TENDER FOR RATE AGREEMENT OF True Nat Machine and MTB/RIF Chips FOR THE
YEAR 2019-20**

Schedule of price bid in the form of BOQ_XXXX.xls uploaded online.

(Below sheet is only for reference)

Tender Inviting Authority: DG & CEO, CMSS

Name of Work: TENDER FOR SUPPLY OF TRUE NAT Machine and RIF/MTB Chips

Tender No: CMSS/PROC/2019-20/RNTCP/013

Bidder
Name :**PRICE SCHEDULE**

(This BOQ template must not be modified/replaced by the bidder and the same should be uploaded after filling the relevant columns, else the bidder is liable to be rejected for this tender. Bidders are allowed to enter the Bidder Name and Values only)

NUMBER #	TEXT #	NUMBER # TEXT # NUMBER			TEXT	NUMBER #	NUMBER	NUMBER	NUMBER	NUMBER	NUMBER	NUMBER	NUMBER #	NUMBER
Sl. No.	Name of the Item	Quantity In Tender	Units	HSN Code	Quantity Offered	EX Works price per unit with 1 year warranty in Rs.	GST (In %)	GST (In Rs.)	Transportation and any Other Charges in Rs. (Till Consignee Locations) on DDP basis. All Inclusive and firm & fixed	Additional warranty for 1st year after completion of warranty (All Inclusive)	Additional warranty for 2nd year after completion of warranty (All Inclusive)	Additional warranty for 3rd year after completion of warranty (All Inclusive)	Additional warranty for 4th year after completion of warranty (All Inclusive)	Total Unit Price With GST(In Rs.) (Col 7+ Col 9 + Col 10+ Col11 +Col12 +Col13 +Col14)
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15
1.01	TrueNat Real Time Micro PCR/RIF/PCR System (DUO) With 1 year warranty		Nos.					₹ 0.0000						₹ 0.0000
1.02	TrueNat Micro PCR/RIF/PCR Chips NTU (with 20% RIF Chips)-50,70,000 MTB Chips with 11,91,000 Rifampicin Chips (For Ref Col no.3)	1,111	Nos.					₹ 0.0000						₹ 0.0000

Note:

1. List of CMSS warehouses as **per Annexure-I**.
2. Details of weight, volume and dimensions of shipping cartons and intermediate cartons may be provided as an additional annex to this form.

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Security Bank Guarantee (Format)

_____ *[insert: Bank's Name, and Address of Issuing Branch or Office]*

Beneficiary: _____ *[insert: Name and Address of Purchaser]*

Date: _____

PERFORMANCE GUARANTEE No.: _____

We have been informed that *[insert: name of Supplier]* (hereinafter called "the Supplier") has received a Letter of Acceptance No. *[insert: reference number of the Letter of Acceptance]* dated _____ for entering into a Rate Agreement with you, for the supply of *[insert: description of goods]*

Furthermore, we understand that, according to the conditions of the Tender, a performance guarantee is required post acceptance of letter of Acceptance.

At the request of the Supplier, we *[insert: name of Bank]* hereby irrevocably undertake to pay you any sum or sums not exceeding in total an amount of *[insert: amount in figures]* (____) *[insert: amount in words]*¹ upon receipt by us of your first demand in writing accompanied by a written statement stating that the Supplier is in breach of its obligation(s) under the Tender, without your needing to prove or to show grounds for your demand or the sum specified therein.

This guarantee shall expire no later than the ____ day of _____, 2____, ² and any demand for payment under it must be received by us at this office on or before that date.

This guarantee is subject to the Uniform Rules for Demand Guarantees, ICC Publication No. 458, except that subparagraph (ii) of Sub-article 20(a) is hereby excluded.

[signature(s)]

The Guarantor shall insert an amount representing the percentage of the Price specified in the letter of Acceptance and denominated in the currency of the Contract.

Established in accordance with tender conditions taking into account any warranty obligations of the Supplier as per tender conditions The Purchaser should note that in the event of an extension of the time to perform the Contract, the Purchaser would need to request an extension of this guarantee from the Guarantor. Such request must be in writing and must be made prior to the expiration date established in the guarantee. In preparing this guarantee, the Purchaser might consider adding the following text to the form, at the end of the penultimate paragraph: "The Guarantor agrees to a one-time extension of this guarantee for a period not to exceed [six months] [one year], in response to the Purchaser's written request for such extension, such request to be presented to the Guarantor before the expiry of the guarantee."

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Annexure-X**Instructions for Online Bid Submission:**

The bidders are required to submit soft copies of their bids electronically on the CPP Portal, using valid Digital Signature Certificates. The instructions given below are meant to assist the bidders in registering on the CPP Portal, prepare their bids in accordance with the requirements and submitting their bids online on the CPP Portal.

More information useful for submitting online bids on the CPP Portal may be obtained at: <https://eprocure.gov.in/eprocure/app>.

REGISTRATION

- 1) Bidders are required to enroll on the e-Procurement module of the Central Public Procurement Portal (URL: <https://eprocure.gov.in/eprocure/app>) by clicking on the link “**Online bidder Enrollment**” on the CPP Portal which is free of charge.
- 2) As part of the enrolment process, the bidders will be required to choose a unique username and assign a password for their accounts.
- 3) Bidders are advised to register their valid email address and mobile numbers as part of the registration process. These would be used for any communication from the CPP Portal.
- 4) Upon enrolment, the bidders will be required to register their valid Digital Signature Certificate (Class II or Class III Certificates with signing key usage) issued by any Certifying Authority recognized by CCA India (e.g. Sify / n Code / eMudhra etc.), with their profile.
- 5) Only one valid DSC should be registered by a bidder. Please note that the bidders are responsible to ensure that they do not lend their DSC's to others which may lead to misuse.
- 6) Bidder then logs in to the site through the secured log-in by entering their user ID / password and the password of the DSC / e-Token.

SEARCHING FOR BID DOCUMENTS

- 1) There are various search options built in the CPP Portal, to facilitate bidders to search active bids by several parameters. These parameters could include Bid ID, Organization Name, Location, Date, Value, etc. There is also an option of advanced search for bids, wherein the bidders may combine a number of search parameters such as Organization Name, Form of Contract, Location, Date, Other keywords etc. to search for a bid published on the CPP Portal.
- 2) Once the bidders have selected the bids they are interested in, they may download the required documents / bid schedules. These bids can be moved to the respective ‘My Bids’ folder. This would enable the CPP Portal to intimate the bidders through SMS / e-mail in case there is any corrigendum issued to the bid document.
- 3) The bidder should make a note of the unique Bid ID assigned to each bid, in case they want to obtain any clarification / help from the Helpdesk.

PREPARATION OF BIDS

- 1) Bidder should take into account any corrigendum published on the bid document before submitting their bids.
- 2) Please go through the bid advertisement and the bid document carefully to understand the documents required to be submitted as part of the bid. Please note the number of covers in which the bid documents have to be submitted, the number of documents - including the names and content of each of the document that need to be submitted. Any deviations from these may lead to rejection of the bid.
- 3) Bidder, in advance, should get ready the bid documents to be submitted as indicated in the bid document / schedule and generally, they can be in PDF / XLS / RAR / DWF/JPG formats. Bid documents may be scanned with 100 dpi with black and white option which helps in reducing size of the scanned document.
- 4) To avoid the time and effort required in uploading the same set of standard documents which are required to be submitted as a part of every bid, a provision of uploading such standard documents (e.g. PAN card copy, annual reports, auditor certificates etc.) has been provided to the bidders. Bidders can use "My Space" or "Other Important Documents" area available to them to upload such documents. These documents may be directly submitted from the "My Space" area while submitting a bid, and need not be uploaded again and again. This will lead to a reduction in the time required for bid submission process.

SUBMISSION OF BIDS

- 1) Bidder should log into the site well in advance for bid submission so that they can upload the bid in time i.e. on or before the bid submission time. Bidder will be responsible for any delay due to other issues.
- 2) The bidder has to digitally sign and upload the required bid documents one by one as indicated in the bid document.
- 3) Bidder has to select the payment option as "offline" to pay the bid fee / EMD as applicable and enter details of the instrument.
- 4) Bidder should prepare the EMD as per the instructions specified in the bid document. The original should be posted/couriered/given in person to the concerned official, latest by the last date of bid submission or as specified in the bid documents. The details of the DD/any other accepted instrument, physically sent, should tally with the details available in the scanned copy and the data entered during bid submission time. Otherwise the uploaded bid will be rejected.
- 5) Bidders are requested to note that they should necessarily submit their financial bids in the format provided and no other format is acceptable. If the price bid has been given as a standard BoQ format with the bid document, then the same is to be downloaded and to be filled by all the bidders. Bidders are required to download the BoQ file, open it and complete the white coloured (unprotected) cells with their respective financial quotes and other details (such as name of the bidder). No other cells should be changed. Once the details have been completed, the bidder should save it and submit it online, without changing the filename. If the BoQ file is found to be modified by the bidder, the bid will be rejected.
- 6) The server time (which is displayed on the bidders' dashboard) will be considered as the standard time for referencing the deadlines for submission of the bids by the

bidders, opening of bids etc. The bidders should follow this time during bid submission.

- 7) All the documents being submitted by the bidders would be encrypted using PKI encryption techniques to ensure the secrecy of the data. The data entered cannot be viewed by unauthorized persons until the time of bid opening. The confidentiality of the bids is maintained using the secured Socket Layer 128 bit encryption technology. Data storage encryption of sensitive fields is done. Any bid document that is uploaded to the server is subjected to symmetric encryption using a system generated symmetric key. Further this key is subjected to asymmetric encryption using buyers/bid openers public keys. Overall, the uploaded bid documents become readable only after the bid opening by the authorized bid openers.
- 7) The uploaded bid documents become readable only after the bid opening by the authorized bid openers.
- 8) Upon the successful and timely submission of bids (ie after Clicking “Freeze Bid Submission” in the portal), the portal will give a successful bid submission message & a bid summary will be displayed with the bid no. and the date & time of submission of the bid with all other relevant details.
- 9) The bid summary has to be printed and kept as an acknowledgement of the submission of the bid. This acknowledgement may be used as an entry pass for any bid opening meetings.

ASSISTANCE TO BIDDERS

- 1) Any queries relating to the bid document and the terms and conditions contained therein should be addressed to the Bid Inviting Authority for a bid or the relevant contact person indicated in the bid.
- 2) Any queries relating to the process of online bid submission or queries relating to CPP Portal in general may be directed to the 24x7 CPP Portal Helpdesk Ph.:0120-4200462, 0120-4001002.Mobile : 91 8826246593

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No Deviation Certificate

Item Name:

This is to certify that the quoted item by our firm, M/sis as per the given technical specifications in the tender document and there is no deviation in relation to any conditions/requirements specified in the tender document.

Signature/Signatures (with Stamp)

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Annexure XII**MANUFACTURER'S AUTHORISATION FORM****Central Medical Services Society**

Dear Sir,

Ref: Your document No _____ dated _____

We, _____ who are proven and reputable manufacturers of _____ (*name and description of the goods offered in the tender*) having factories at _____, hereby authorise Messrs _____ (*name and address of the agent*) to submit a tender, process the same further and enter into a contract with you against your requirement as contained in the above referred TE documents for the above goods manufactured by us.

We also state that we are not participating directly in this tender for the following reason(s):

(*please provide reason here*).

We further confirm that no supplier or firm or individual other than Messrs. _____ (*name and address of the above agent*) is authorised to submit a tender, process the same further and enter into a contract with you against your requirement as contained in the above referred TE documents for the above goods manufactured by us.

We also hereby extend our full warranty, CMC as applicable as per the terms of the tender document, read with modification, if any, for the goods and services offered for supply by the above firm against this TE document.

We also hereby confirm that we would be responsible for the satisfactory execution of contract placed on the authorised agent

We also confirm that the price quoted by our agent shall not exceed the price which we would have quoted directly"

Yours faithfully,

[*Signature with date, name and designation*] [*Signature with date, name and designation*]

for and on behalf of Messrs _____ for and on behalf of Messrs _____

[*Name & address of the manufacturers*] [*Name & address of the bidder*]

- Note: 1. This letter of authorisation should be on the letter head of the manufacturing firm and should be signed by a person competent and having the power of attorney to legally bind the manufacturer.
2. Original letter shall be submitted at the time of signing the contract; scanned copy to be uploaded at the e-procurement site.
3. Manufacturer is solely responsible for providing the continuing warranty/CMC service for the approved stipulated period.

PAC Certificates

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Annexure 6: Proprietary Article Certificate
(Refer Para 4.6.1)

Valid for the Current Financial Year (2019-20)

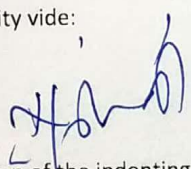
File Number and Date Reference		Z-28015/262/2017-TB
1	Description of article	Truelab Real Time MicroPCR/RTPCR system
2	Forecast of quantity / annual requirement	1,512 Machines (System)
3	Approximate estimated value for above quantity	INR 86.18 Crore (Approx.)
4	Maker's name and address	Molbio Diagnostics Pvt. Ltd. GOA, INDIA
5	Name(s) of authorized dealers /stockists	Molbio Diagnostics Pvt. Ltd. GOA, INDIA
6	I approve the above purchase on PAC basis and certify that :- Note: Tick to retain only one out of (b),(c-1) or (c-2) whichever is applicable and cross out others. Please do inform (a) by ticking it – without which PAC certificate will be invalid.	
6(a)	This is the only firm who is manufacturing/stocking this item. AND	☒
6(b)	A similar article is not manufactured /sold by any other firm, which could be used in lieu OR	☒
6(c-1)	No other make/brand will be suitable for following tangible reasons (like OEM/warranty spares) : OR	☒
6(c)	No other make/brand will be suitable for following intangible reasons (if PAC was also given in the last procurement cycle, please also bring out efforts made since then to locate more sources): OR	☒
7	Reference of concurrence of finance wing to the proposal :	C-3934 Dated: 22.03.2019

History of PAC purchases of this item for past three years may be given below #			
Name of the Supplier	Quantity Ordered	Basic Rate on Order (Rs.)	Adverse Performance Reported if any
Order/Tender Reference & Date			
-	-	-	-
-	-	-	-
-	-	-	-

Program division procuring for the first time using domestic budget.

Approval of the competent authority vide:

(Signature with date and designation of the indenting officer)


 डॉ. निशांत कुमार / Dr. Nishant Kumar
 उप निदेशक / Deputy Director
 स्वास्थ्य सेवा महानिदेशालय / Directorate General of Health Services
 स्वास्थ्य एवं परिवार कल्याण, मंत्रालय / Ministry of Health & Family Welfare
 निर्माण भवन, नई दिल्ली-110108 / Nirman Bhawan, New Delhi-110108

Annexure 6: Proprietary Article Certificate
(Refer Para 4.6.1)

Valid for the Current Financial Year (2019-20)

File Number and Date Reference		Z-28015/262/2017-TB
1	Description of article	Truenat MicroPCR/RTPCR Chips (MTB)
2	Forecast of quantity / annual requirement	59,70,000 Chips
3	Approximate estimated value for above quantity	INR 328.35 Crore (Approx.)
4	Maker's name and address	Molbio Diagnostics Pvt. Ltd. GOA, INDIA
5	Name(s) of authorized dealers /stockists	Molbio Diagnostics Pvt. Ltd. GOA, INDIA
6	I approve the above purchase on PAC basis and certify that :- Note: Tick to retain only one out of (b),(c-1) or (c-2) whichever is applicable and cross out others. Please do inform (a) by ticking it – without which PAC certificate will be invalid.	
6(a)	This is the only firm who is manufacturing/stocking this item. AND	☒
6(b)	A similar article is not manufactured /sold by any other firm, which could be used in lieu OR	☒
6(c-1)	No other make/brand will be suitable for following tangible reasons (like OEM/warranty spares) : OR	☒
6(c)	No other make/brand will be suitable for following intangible reasons (if PAC was also given in the last procurement cycle, please also bring out efforts made since then to locate more sources): OR	☒
7	Reference of concurrence of finance wing to the proposal :	C-3934 Dated: 22.03.2019

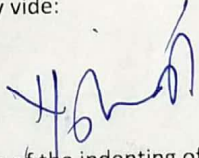
History of PAC purchases of this item for past three years may be given below #

Name of the Supplier	Order/Tender Reference & Date	Quantity Ordered	Basic Rate on Order (Rs.)	Adverse Performance Reported if any
	-	-	-	-
	-	-	-	-
	-	-	-	-

Program division procuring for the first time using domestic budget.

Approval of the competent authority vide:

(Signature with date and designation of the indenting officer)


डॉ. निशान्त कुमार / Dr. Nishant Kumar
उप निदेशक / Deputy Director
स्वास्थ्य सेवा महानिदेशालय / Director General of Health Services
स्वास्थ्य एवं परिवार कल्याण मंत्रालय / Ministry of Health & Family Welfare
निर्माण भवन, नई दिल्ली-110103 / Nirman Bhawan, New Delhi-110103

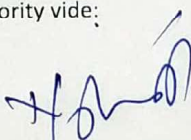
Annexure 6: Proprietary Article Certificate
(Refer Para 4.6.1)

Valid for the Current Financial Year (2019-20)

File Number and Date Reference		Z-28015/262/2017-TB	
1	Description of article	Truenat MicroPCR/RTPCR Chips (RIF)	
2	Forecast of quantity / annual requirement	11,94,000 Chips	
3	Approximate estimated value for above quantity	- NIL -	
4	Maker's name and address	Molbio Diagnostics Pvt. Ltd. GOA, INDIA	
5	Name(s) of authorized dealers /stockists	Molbio Diagnostics Pvt. Ltd. GOA, INDIA	
6	I approve the above purchase on PAC basis and certify that :- Note: Tick to retain only one out of (b),(c-1) or (c-2) whichever is applicable and cross out others. Please do inform (a) by ticking it – without which PAC certificate will be invalid.		
6(a)	This is the only firm who is manufacturing/stocking this item. AND	☒	
6(b)	A similar article is not manufactured /sold by any other firm, which could be used in lieu OR	☒	
6 (c-1)	No other make/brand will be suitable for following tangible reasons (like OEM/warranty spares) : OR	☒	
6(c)	No other make/brand will be suitable for following intangible reasons (if PAC was also given in the last procurement cycle, please also bring out efforts made since then to locate more sources): OR	☒	
7	Reference of concurrence of finance wing to the proposal :	C-3934 Dated: 22.03.2019	
History of PAC purchases of this item for past three years may be given below #			
Name of the Supplier			
Order/Tender Reference & Date	Quantity Ordered	Basic Rate on Order (Rs.)	Adverse Performance Reported if any
-	-	-	-
-	-	-	-
-	-	-	-

Program division procuring for the first time using domestic budget.

Approval of the competent authority vide:



(Signature with date and designation of the indenting officer)

डॉ. निशांत कुमार / Dr. Nishant Kumar
उप निदेशक / Deputy Director
स्वास्थ्य सेवा महानिदेशालय / Directorate General of Health Services
स्वास्थ्य एवं परिवार कल्याण मंत्रालय / Ministry of Health & Family Welfare
निर्माण भवन, नई दिल्ली-110108 / Nirman Bhawan, New Delhi-110108

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Annexure XIV
CONSIGNEE RECEIPT CERTIFICATE

(To be given by consignee's authorized representative)

The following store(s) has/have been received in good condition:

- 1) Contract / P.O No. & date:_____
- 2) Supplier's Name:_____
- 3) Consignee's Name & Address with telephone No. & Fax No. : _____

- 4) Name of the item supplied:_____
- 5) Quantity Supplied:_____
- 6) Date of Receipt by the Consignee:_____
- 7) Site Readiness status confirm by the Consignee:_____
- 8) Name and designation of Authorized Representative of Consignee :_____
- 9) Signature of Authorized Representative of Consignee with date:_____
- 10) Counter Signed by Director/MS/Dean of the concerned Hospital/Institute:_____
- 11) Seal of the Consignee:_____

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Annexure XV**Performa of Final Acceptance Certificate by the Consignee**

No _____ Date _____

ToM/s _____
_____**Subject:** Certificate of commissioning of equipment/plant.

This is to certify that the equipment(s)/plant(s) as detailed below has/have been received in good conditions along with all the standard and special accessories and a set of spares (subject to remarks in Para no.02) in accordance with the contract/technical specifications. The same has been installed and commissioned.

- (a) Contract No _____ dated _____
- (b) Description of the equipment(s)/plants: _____
- (c) Equipment(s)/ plant(s) nos.: _____
- (d) Quantity: _____
- (e) Bill of Loading/Air Way Bill/Railway Receipt/ Goods Consignment Note no _____ dated _____
- (f) Name of the vessel/Transporters: _____
- (g) Name of the Consignee: _____
- (h) Date of Installation/ commissioning and proving test: _____

Details of accessories/spares not yet supplied and recoveries to be made on that account.

Sl. No.	Description of Item	Quantity	Amount to be recovered

The proving test has been done to our entire satisfaction and operators have been trained to operate the equipment(s)/plant(s).

The supplier has fulfilled its contractual obligations satisfactorily or

The supplier has failed to fulfil its contractual obligations with regard to the following:

- a) **He has not adhered to the time schedule specified in the contract in dispatching the documents/ drawings pursuant to 'Technical Specifications'.**
- b) **He has not supervised the commissioning of the equipment(s)/plant(s) in time, i.e. within the period specified in the contract from date of intimation by the TIA/Consignee in respect of the installation of the equipment(s)/plant(s).**
- c) **The supplier as specified in the contract has not done training of personnel.**

The extent of delay for each of the activities to be performed by the supplier in terms of the contract is

The amount of recovery on account of non-supply of accessories and spares is given under Para no.02.

The amount of recovery on account of failure of the supplier to meet his contractual obligations is_____ (here indicate the amount).

(Signature)

(Name)

(Designation with stamp)

*(Counter Signed by Director/MS/Dean
of the concerned Hospital/Institute)*

Explanatory notes for filling up the certificate:

- i) **He has adhered to the time schedule specified in the contract in dispatching the documents/drawings pursuant to 'Technical Specification'.**
- ii) **He has supervised the commissioning of the equipment(s)/plant(s) in time, i.e. within the time specified in the contract from date of intimation by the TIA/Consignee in respect of the installation of the equipment(s)/plant(s).**
- iii) **Training of personnel has been done by the supplier as specified in the contract.**
- iv) **In the event of documents/drawings having not been supplied or installation and commissioning of the equipment(s)/plant(s) having been delayed on account of the supplier, the extent of delay should always be mentioned in clear terms.**